

URED-3503
(Political Thoughts and Social Behavior)
Mid- Term Suggestion

Question 1: What is meant by the Islamic Political System? Explain the principles of the Islamic Political System.

The **Islamic Political System** is the system through which an Islamic government governs according to the **laws and guidance of Allah (SWT)**. It is a form of governance based on the **Qur'an and Sunnah**, where **religion and politics are inseparable**.

In Islam, politics is not separate from religion; rather, it is a part of the complete code of life given by Allah. Islam teaches us how to perform religious duties like Salah, Sawm, Zakah, and Hajj, as well as how to establish justice, form a government, and manage the affairs of the state.

Allah (SWT) says in the Qur'an:

“We said: ‘Get down all of you from this place (the paradise), then whenever there comes to you Guidance from Me, and whoever follows My Guidance, there shall be no fear on them, nor shall they grieve.’”

(Surah Al-Baqarah, 2:38)

Islam provides a complete system for ruling and governing this world — this is known as the **Islamic Political System**, where **Allah is the Supreme Authority**, and human beings act as His **vicegerents (Khalifah)** on earth.

Principles of the Islamic Political System:

The **Islamic Political System** is based on several fundamental principles derived from the Qur'an and Sunnah:

1. Sovereignty of Allah (SWT):

In Islam, **Allah alone possesses ultimate authority** over the universe. All laws and powers belong to Him, and no one has the right to change His commands.

Allah says in the Qur'an:

“The command (or the judgment) is for none but Allah. He has commanded that you worship none but Him; that is the true straight religion, but most men know not.”

(Surah Yusuf, 12:40)

“Blessed is He in Whose Hand is the dominion; and He is Able to do all things.”

(Surah Al-Mulk, 67:1)

Therefore, no parliament or ruler can overrule or alter Allah's laws. The Qur'an clearly declares:

“And whosoever does not judge by what Allah has revealed, such are the disbelievers (Kafirun).”

(Surah Al-Ma'idah, 5:44)

Thus, **Allah's sovereignty is absolute**, and human beings must govern according to His revealed laws.

2. Caliphate (Khalifah) of Mankind:

Caliphate means **representation** or **succession**. Human beings are the **Khalifah (vicegerents)** of Allah on earth. It is their duty to implement Allah's laws and establish justice.

Allah (SWT) says:

“Verily, I am going to place a vicegerent (Khalifah) on the earth.”

(Surah Al-Baqarah, 2:30)

“And it is He Who has made you generations coming after generations on the earth, and raised you in ranks to test you.”

(Surah Al-An'am, 6:165)

Therefore, every human being is responsible for carrying out the will of Allah and maintaining peace and justice as His representative.

3. Legislation by Shura (Consultation):

Shura means **consultation** or **mutual discussion**. Islam encourages collective decision-making and forbids dictatorship. The Prophet (SAW) himself practiced Shura in state affairs.

Allah commands in the Qur'an:

“And consult them in the affairs. Then, when you have taken a decision, put your trust in Allah.”

(Surah Aal-e-Imran, 3:159)

“And those who answer the call of their Lord and establish prayer, and who conduct their affairs by mutual consultation...”

(Surah Ash-Shura, 42:38)

Hence, legislation in an Islamic state is done through **consultation** among scholars and experts, always within the framework of the Qur'an and Sunnah.

4. Accountability of the Government:

In the Islamic system, the **government is responsible to Allah first and then to the people**. The ruler must act according to Islamic principles and for the welfare of the citizens.

Caliph Abu Bakr (R.A.) said after being elected:

“Obey me as long as I obey Allah and His Messenger; when I disobey them, you owe me no obedience.”

Even the head of state can be questioned or removed if he fails to fulfill his responsibilities. Thus, **Islamic governance is based on transparency, justice, and responsibility.**

5. Independence of Judiciary:

The **judiciary** in Islam is **independent** and must ensure justice for all, without any political interference. Even the ruler is subject to the same laws as ordinary citizens.

Allah (SWT) commands:

“When you judge between men, judge with justice. Verily, how excellent is the teaching which Allah gives you.”

(Surah An-Nisa, 4:58)

“O you who believe! Stand out firmly for Allah as just witnesses, and let not the enmity of others make you avoid justice. Be just: that is nearer to piety.”

(Surah Al-Ma'idah, 5:8)

Justice is the foundation of Islamic governance.

6. Equality before Law:

In the Islamic political system, **all citizens are equal before the law**, regardless of race, color, wealth, or status. The only criterion of superiority is **Taqwa (piety)**.

Allah says:

“O mankind! We created you from a male and a female, and made you into nations and tribes so that you may know one another. Verily, the most honorable of you in the sight of Allah is the one who has Taqwa.”

(Surah Al-Hujurat, 49:13)

The Prophet (SAW) said:

“By Allah, if Fatimah, the daughter of Muhammad, committed theft, I would have ordered to cut off her hand.”

(Sahih Bukhari)

Hence, Islam ensures complete equality and justice for all members of society.

The **Islamic Political System** is a divine system based on the **sovereignty of Allah, representation of mankind, consultation (Shura), accountability, independent judiciary, and equality before the law.** Its ultimate goal is to establish justice, peace, and welfare under the guidance of the **Qur'an and Sunnah.**

Question 2: What is meant by Shariah? Describe the sources of Shariah.

Meaning of Shariah:

The word **Shariah** (Arabic: شريعة) literally means “**a clear straight path**” or “**a way to the watering place**.” In the Islamic sense, **Shariah** refers to the **divinely revealed law** that guides mankind toward peace, justice, and prosperity in this life and success in the Hereafter.

The term comes from the Arabic root “**shara’a**”, which means *to prescribe, to make clear, or to legislate*. Pre-Islamic Arabs used it to mean *a water hole or the straight path to a water source*, symbolizing the **path of life and purity**.

In Islam, **Shariah** is the complete code of life revealed by Allah for mankind. It governs every aspect of life — personal, social, political, economic, and spiritual.

Allah (SWT) says in the Qur’an:

“He (Allah) has ordained for you the same religion which He ordained for Nuh, and that which We have revealed to you [O Muhammad (SAW)], and that which We ordained for Ibrahim, Musa, and Isa, saying: You should establish religion and make no divisions in it.”

(Surah Ash-Shura, 42:13)

He also says:

“Then We have put you [O Muhammad (SAW)] on a clear way of Our commandment, so follow it and do not follow the desires of those who know not.”

(Surah Al-Jathiyah, 45:18)

Thus, **Shariah** is the divine system revealed to guide mankind to the straight path.

Sources of Shariah:

The **sources of Shariah** are divided into **two categories** — *Primary (Main)* and *Secondary* sources.

A. Primary (Main) Sources:

1. Al-Qur’an:

The **Qur’an** is the **first and most important source** of Islamic law. It contains Allah’s direct words revealed to Prophet Muhammad (SAW). It gives clear guidance on beliefs, worship, ethics, family life, business, and state matters. All other sources must conform to it.

2. Al-Sunnah (Hadith):

The **Sunnah** refers to the **sayings, actions, and approvals** of Prophet Muhammad (SAW). It explains and expands upon the teachings of the Qur’an. If the Qur’an gives general guidance, the Sunnah provides the practical example. For instance, the Qur’an commands prayer, but the Sunnah teaches how to perform it.

B. Secondary Sources:

1. **Ijma (Consensus):**

Ijma means **agreement of qualified scholars** on a legal issue when there is no clear verdict in the Qur'an or Sunnah. It represents the collective wisdom of the Ummah. The practice of *Ijma* began during the time of the **Khulafa'ur Rashidun** (Rightly Guided Caliphs).

2. **Qiyas (Analogy):**

Qiyas means **reasoning by analogy** — applying known rulings from the Qur'an or Sunnah to new situations that share similar causes or reasoning. For example, the Qur'an forbids wine because it intoxicates; by analogy, drugs are also prohibited.

C. Additional (Supporting) Sources:

1. **Al-Istihsan (Equity/Fairness)** – preference for a fair and just solution when strict analogy causes hardship.
2. **Al-Masaleh al-Mursalah (Public Interest)** – rulings based on the welfare of society.
3. **Al-Istishab (Presumption of Continuity)** – assuming continuity of a known state until proven otherwise.
4. **Al-'Urf (Custom)** – accepted local customs that do not conflict with Qur'an or Sunnah.

Question 3: Distinguish between Man-made Law and Islamic Law

Basis of Difference	Man-made Law	Islamic Law (Shariah)
1. Origin	Created by human beings according to their needs and circumstances.	Revealed by Allah (SWT) through the Qur'an and Sunnah.
2. Perfection	Imperfect and limited, because human knowledge is limited.	Perfect and complete, as Allah is All-Knowing and All-Wise.
3. Permanence	Temporary; changes with time, place, and situation.	Permanent; valid for all times and places.
4. Universality	Limited to a particular nation or country.	Universal; applies to all mankind.
5. Knowledge of Future	Humans cannot foresee the future; their laws often fail over time.	Allah is All-Knowing; His laws are eternally relevant.
6. Purpose	Often serves the interests of a few, such as politicians or the wealthy.	Serves the welfare of all humanity, ensuring justice and equality.

Basis of Difference	Man-made Law	Islamic Law (Shariah)
7. Dependence	Human laws depend on the opinions and experiences of people.	Divine laws depend on the wisdom and guidance of Allah.
8. Example	A government may ban alcohol today and allow it tomorrow.	Shariah permanently forbids alcohol and gambling, and no one can change it.

Question 4: What are the basic and special features of the Islamic Constitution?

1. **Supremacy of Shariah:**

The Qur'an and Sunnah are the highest sources of law. All rules and regulations must conform to Islamic teachings.

Verse:

"Then We have put you (O Prophet) on the right way of religion, so follow it."
(Surah Al-Jathiyah, 45:18)

2. **Administration through Consultation (Shura):**

The government must act through mutual consultation, not dictatorship.

Verses:

"And consult them in affairs; then when you have taken a decision, put your trust in Allah."

(Surah Aal Imran, 3:159)

"And those who conduct their affairs by mutual consultation."

(Surah Ash-Shura, 42:38)

3. **All Wealth Belongs to Allah:**

Allah is the real owner of all wealth; humans are only trustees. Wealth must be used in lawful ways.

Verse:

"To Allah belongs the dominion of the heavens and the earth and all that is therein."
(Surah Al-Ma'idah, 5:120)

4. **Sharing of Wealth for Social Welfare:**

The rich must help the poor through Zakat and charity. Economic balance and justice are key goals.

Verses:

"Take alms from their wealth to purify and sanctify them."

(Surah At-Tawbah, 9:103)

"And in their wealth there is a right for the beggar and the deprived."

(Surah Adh-Dhariyat, 51:19)

5. **Constitution as Moral and Legal Guide:**

The Islamic constitution teaches citizens their rights and duties so they can act responsibly.

Verse:

“Read your book. You yourself are sufficient as a reckoner against you this Day.”
(Surah Al-Isra, 17:14)

6. **Positive Role of Media:**

Media must promote Islamic values, truth, education, and unity — not corruption or immorality.

Verse:

“Whosoever does not judge by what Allah has revealed, such are the disbelievers.”
(Surah Al-Ma'idah, 5:44)

7. **Protection of the Oppressed and Needy:**

The state must help the poor, weak, and oppressed to create a just and balanced society.

Verse:

“And why should you not fight in the cause of Allah for those who are weak and oppressed?”
(Surah An-Nisa, 4:75)

8. **Guarantee of Basic Needs:**

Every citizen has the right to food, shelter, health, and education. The state must ensure these rights.

Verse:

“There is no creature on earth but that upon Allah is its provision.”
(Surah Hud, 11:6)

9. **Building Good Character:**

The main goal is to create citizens of noble character and morality.

Hadith:

“I have been sent only to perfect good character.”
(Musnad Ahmad)

10. **Producing Allah-Fearing Citizens:**

An Islamic state aims to develop pious and righteous citizens who fear Allah and avoid wrongdoing.

Verse:

“And whoever fears Allah, He will make for him a way out and provide for him from where he does not expect.”
(Surah At-Talaq, 65:2-3)

Question 5: Explain the concept of the Islamic State and its fundamental principles.

Concept of the Islamic State

Islam is not a religion limited only to prayer, fasting, or worship. Rather, **Islam is a complete code of life** that includes political, economic, social, moral, and legal systems.

The **Islamic State** is the system of governance where **sovereignty belongs to Allah (SWT)**, and all matters of law, administration, and justice are conducted **according to the Qur'an and Sunnah**.

During the lifetime of **Prophet Muhammad (SAW)** and the **Rightly Guided Caliphs (Khulafā' -e-Rāshidīn)**, this system was practically demonstrated in its complete form.

A **Muslim state** is simply a state ruled by Muslims, but an **Islamic state** is a state that is **governed by Muslims in accordance with the divine principles of Islam**.

Thus, an Islamic state can be defined as:

“A state where sovereignty belongs to Allah, the Qur’an and Sunnah are the supreme law, and the government enforces divine justice among its citizens.”

Main Features of the Islamic State

1. **Sovereignty of Allah (SWT):**
Allah alone is the real sovereign. No person, ruler, or group can claim the right to legislate independently.
“The decision rests with none but Allah.” — (Surah Yusuf, 12:40)
2. **Supremacy of Shariah (Divine Law):**
Allah is the ultimate Lawgiver, and no human being has authority to modify or replace His commands.
“He has commanded that you worship none but Him.” — (Surah Yusuf, 12:40)
3. **Government as Trustee (Khilafah):**
The government acts as a political agency or trustee to **implement Allah’s commands** and ensure justice in society.
4. **Purpose of the Islamic State:**
The aim is to establish **virtue and justice** and to eliminate evil and corruption.
“Those who, if We give them power in the land, establish prayer and give zakah and enjoin what is right and forbid what is wrong...” — (Surah Al-Hajj, 22:41)
5. **Necessity of an Islamic State:**
The establishment of such a state is essential for the **complete obedience of Allah** in all aspects of life—spiritual, moral, and social.
“And say: My Lord, let me enter with truth and let me exit with truth, and grant me from Yourself a supporting authority.” — (Surah Al-Isra, 17:80)

Main Objectives of an Islamic State

1. **Establishment of Prayer (Salah).**
2. **Implementation of Zakat.**
3. **Enjoining good (Amr bil Ma’rūf).**
4. **Forbidding evil (Nahy anil Munkar).**

Main Organs of the Islamic State

1. **Executive:** To implement the laws and policies according to Islam.
2. **Legislative:** To make laws within the boundaries of the Qur’an and Sunnah.
3. **Judiciary:** To ensure justice and maintain the rule of law independently.

Principles of the Islamic State

The Qur’an clearly outlines the guiding principles in this verse:

“O you who believe! Obey Allah, and obey the Messenger, and those of you who are in authority. And if you differ in anything, refer it to Allah and His Messenger...” — (Surah An-Nisā’, 4:59)

From this verse, five key **principles** of an Islamic State are derived:

1. **Sovereignty of Allah (SWT):**
Allah is the Supreme Lawgiver and must be obeyed without question.
2. **Obedience to the Prophet (SAW):**
The Messenger (SAW) must be obeyed unconditionally as the interpreter of divine law.
3. **Conditional Obedience to Rulers:**
Leaders are to be obeyed as long as they follow the Qur’an and Sunnah. No obedience is due if they violate Allah’s command.
4. **Dispute Resolution by Qur’an and Sunnah:**
All disagreements must be settled according to the Qur’an and Sunnah, not by personal opinion or secular reasoning.
5. **Independent Judiciary:**
There must be an impartial judicial system to ensure justice and to give rulings even against the rulers if necessary.

Question 6: Differentiate between an Islamic State and a Secular State.

Aspect	Islamic State	Secular State
Basis of Law	Governed by the Qur’an and Sunnah (Divine Law).	Governed by man-made laws and human reasoning.
Sovereignty	Belongs solely to Allah (SWT) .	Belongs to the people or the state .
Ideology	Ideological — based on belief in Islam.	Non-ideological — religion separated from politics.
Leadership	Must be Muslims who believe in Islamic ideology and Shariah.	Can be followers of any religion or none .
Rights of Non-Muslims	Guaranteed specific rights and protection under Islamic law; they do not partake in policymaking on Islamic ideology.	Equal citizenship without religious distinction; religion has no role in governance.
Objective	To establish virtue, justice, and worship of Allah in society.	To ensure worldly welfare and freedom, irrespective of religious belief.

Question 7: Explain the concept of Shura. What are the qualifications of the Islamic Shura system? What are its functions?

Meaning and Concept of Shura:

The Arabic term *Shura* means **consultation** or **mutual discussion**. In Islam, Shura refers to the process of **seeking advice and opinions** in state affairs from knowledgeable and experienced people. It ensures that government decisions are made through **consultation, not dictatorship**. The Holy Qur'an commands:

“And consult them in the affairs; then when you have taken a decision, put your trust in Allah.” (Surah Al-Imran, 3:159)

This principle makes the Islamic system **democratic in nature**, as the ruler must govern through consultation within the limits of the Shariah.

Qualifications of the Members of Shura:

Members of the *Majlis al-Shura* should be:

1. **Practicing Muslims** of sound faith and character.
2. **Knowledgeable** in Islamic law (Shariah) and public affairs.
3. **Wise, just, and trustworthy** individuals with leadership qualities.
4. Both **men and women** may be members if they meet these conditions.

Functions of Shura:

1. **Advising the ruler** in administration, law, and state policy.
2. **Interpreting and explaining** complex terms of the Qur'an and Sunnah.
3. **Formulating new laws** on matters not directly addressed in Shariah.
4. **Examining and approving bills** to ensure they comply with Islamic principles.
5. **Approving the state budget** and supervising government affairs.
6. **Researching and suggesting** ways to apply Islamic laws effectively.

Question 8: Analyze the Judicial System of Islam and explain the conditions of citizenship in an Islamic State.

1. Judicial System of Islam

Concept:

The Islamic judicial system is based on the **Shariah (Islamic law)**, derived from the **Qur'an, Sunnah, Ijma, and Qiyas**. Its primary aim is to **ensure justice, protect rights, and punish wrongdoing** while maintaining moral and social order.

Features:

1. **Independence:** Judges (Qadis) must be impartial and free from influence of rulers or political pressure.
2. **Justice for All:** Everyone, whether rich or poor, Muslim or non-Muslim, must be treated equally under the law.
3. **Accountability:** Judges are accountable to Allah (SWT) for their decisions.
4. **Public Welfare:** The judicial system ensures that laws benefit society and prevent oppression and corruption.
5. **Punishments and Remedies:** Includes **Hudud (fixed punishments)**, **Qisas (retaliation)**, **Diyah (compensation)**, and **discretionary punishments (Ta'zir)** as prescribed in Shariah.

Qur'anic Evidence:

“Indeed, Allah commands you to render trusts to whom they are due and when you judge between people to judge with justice.” (Surah An-Nisa, 4:58)

2. Conditions of Citizenship in an Islamic State

1. **Faith in Islam:**
 - Muslims automatically qualify as citizens.
 - Non-Muslims may also live in an Islamic state with guaranteed rights (e.g., protection of life, property, and religious freedom) as long as they respect state laws.
2. **Obedience to Laws:**
 - Citizens must follow the laws of the state based on Shariah.
3. **Contribution to Society:**
 - Citizens are required to **pay Zakat or taxes** for public welfare and support the state in maintaining justice and security.
4. **Loyalty and Cooperation:**
 - Citizens should **support the government** in enforcing Islamic principles, preventing corruption, and promoting public good.
5. **Rights and Responsibilities:**
 - Citizens enjoy **protection, social welfare, and equal rights**, but also bear **duties like obeying law, participating in Shura, and safeguarding public interests**.

Qur'anic Evidence:

“And those who respond to their Lord and establish prayer, conduct affairs by consultation among themselves, and spend from what We have provided them.” (Surah Ash-Shura, 42:38)